

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS

STATE OF COLORADO

Case No. 2014-697

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
REGISTRATION TO PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE
STATE OF COLORADO OF SHELLI LYNEE MYLES, REGISTRATION NO. RP (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists ("Board") and Shelli Lynee Myles ("Applicant") as follows:

1. On or about July 7, 2013, Applicant applied for registration in the database to practice as a registered psychotherapist ("RP") in the State of Colorado ("Application").
2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2014-697. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or around December 13, 2012, the Board ordered Applicant to Cease and Desist ("C&D") from the practice of psychotherapy in Colorado.
 - b. On or about July 7, 2013, Applicant applied for registration as a RP in the State of Colorado, and her request to be registered in the database is currently pending.
 - c. On the Application, Applicant answered "yes" to question 1 which states: "Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?"
 - d. Applicant is not and never has been registered as a RP to practice psychotherapy in the State of Colorado.

- e. Applicant has admitted to practicing without being registered as a RP since May 2011 and, after December 13, 2012, in violation of the C&D.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Applicant violated §§12-43-222(1)(b) and 12-43-702.5, C.R.S.

6. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to accept a registration subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a registration. Applicant consents to the following limitations to her registration within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this registration in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Board hereby admonishes Applicant for violation of §§12-43-222(1)(b) and 12-43-702.5, C.R.S. This Order is effective as a Letter of Admonition, set forth by §12-43-224(3)(d), C.R.S. As part of the admonishment, Applicant agrees to the following terms as a Board Order:

FINE

8. Applicant shall pay a fine of one hundred fifty dollars (\$150.00) as authorized by Section 12-43-223(1)(b), C.R.S. Applicant understands and acknowledges that, pursuant to Section 24-34-108, C.R.S., the Executive Director of the Department of Regulatory Agencies shall impose an additional surcharge of ten percent (10%) of this fine. Thus, Applicant shall pay a total amount of one hundred sixty five dollars (\$165.00). The total amount shall be due and payable to the State of Colorado at the time Applicant signs this Order, and shall be submitted together with this signed Order.

TERMS AND CONDITIONS

9. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

11. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

12. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-

4-104(9), C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

14. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

16. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. Applicant shall obey all state and federal laws while this Order is in effect.

18. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

19. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

20. This Order shall be admissible as evidence at any hearing held before the Board.

21. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

APPLICANT



SHELLI LYNEE MYLES
REGISTRATION NO. RP (Pending)

AGREED TO AND ORDERED BY:

BOARD OF REGISTERED
PSYCHOTHERAPISTS



JACQUILINE ARCELIN
Program Director

Effective this 16th day of
April, 2014.